

26WCUD01157 26WCUD01157

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Case Number: 26WCUD01157 Hearing Date: July 21, 2026 Dept: 6

CASE

NAME: Sharon

Butler v. Adrian Magallanes

Defendant

Adrian Magallanes' Demurrer to Complaint

TENTATIVE

RULING

The Court OVERRULES Defendant Adrian Magallanes' Demurrer to Complaint. Defendant must file and serve an Answer to the Complaint within five calendar days of this order.

Plaintiff Sharon Butler is ordered
to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a residential unlawful detainer action. On July 13, 2026, plaintiff Sharon Butler (Plaintiff) filed this action against defendant Adrian Magallanes (Defendant), alleging the sole cause of action for unlawful detainer.

On July 13, 2026, Defendant demurred to the Complaint. On the same date, Plaintiff opposed the Demurrer.

LEGAL

STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

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demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 ["[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits"].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046-1047.)

DISCUSSION

Unlawful Detainer

“Any tenant, subtenant, or executor or administrator of that person's estate heretofore qualified and now acting, or hereafter to be qualified and act, assigning or subletting or committing waste upon the demised premises, contrary to the conditions or covenants of the lease, or maintaining, committing, or permitting the maintenance or commission of a nuisance upon the demised premises or using the premises for an unlawful purpose, thereby terminates the lease, and the landlord, or the landlord's successor in estate, shall upon service of three days' notice to quit upon the person or persons in possession, be entitled to restitution of possession of the demised premises under this chapter. For purposes of this subdivision, a person who commits or maintains a public nuisance as described in Section 3482.8 of the Civil Code, or who commits an offense described in subdivision (c) of Section 3485 of the Civil Code, or subdivision (c) of Section 3486 of the Civil Code, or uses the premises to further the purpose of that offense shall be deemed to have committed a nuisance upon the premises.” (Code Civ. Proc., § 1161, subd. (4).)

Defendant demurs to the Complaint on the grounds that the three-day notice is fatally defective. More specifically, Defendant contends it lacks the information required by Code of Civil Procedure section 1161, subdivision (2), fails to specify the acts constituting the alleged nuisance with sufficient particularity, and thereby deprives the Court of subject matter jurisdiction.

In opposition, Plaintiff contends that the Demurrer relies on the wrong statute, i.e., Code of Civil Procedure section 1161, subdivision (2), which governs unlawful detainer for nonpayment of rent, when this action is unlawful detainer based on nuisance under Code of Civil Procedure section 1161, subdivision (4). Plaintiff contends that the Complaint pleads every element of unlawful detainer, that the three-day notice describes the conduct with particularity, that factual disputes belong at trial, and that no defect affects jurisdiction.

The Court finds the Complaint alleges sufficient facts to state a cause of action for unlawful detainer. Plaintiff correctly notes that this unlawful detainer action is for nuisance under Code of Civil Procedure section 1161, subdivision (4), and not for nonpayment of rent under section 1161, subdivision (2). (See Compl., ¶ 20, p. 5.) As such,

Defendant's contentions that Plaintiff's three-day notice fails to comply with Code of Civil Procedure section 1161, subdivision (2), are technically correct but irrelevant since Plaintiff seeks unlawful detainer on grounds other than nonpayment of rent. The three-day notice otherwise contains all the necessary information: it is expressly directed to Defendant, identifies the premises, states that it is based on Defendant having committed and maintained a nuisance upon the premises and used the premises for unlawful purposes under Code of Civil Procedure section 1161, subdivision (4), identifies Defendant's actions that constitute a nuisance or unlawful purposes, and states that Defendant has three days to vacate the premises. (Compl., p. 5.) The Complaint otherwise alleges that Defendant is a tenant of the premises under a rental agreement and that Defendant failed to comply with the requirements of the three-day notice by the date specified in the notice. (Compl., ¶¶ 6, 9, subd. (b).) Plaintiff also filed the Complaint on July 7, 2026, which is more than three days after the three-day notice was personally served on Defendant on June 26, 2026. (See generally, Compl.)

Based on the foregoing, the Court OVERRULES the Demurrer.

CONCLUSION

The Court OVERRULES Defendant Adrian Magallanes' Demurrer to Complaint. Defendant must file and serve an Answer to the Complaint within five calendar days of this order.

Plaintiff Sharon Butler is ordered to give notice of the Court's ruling within five calendar days of this order.